



**THE POLICE COMMISSIONER  
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM  
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

**Re:** PODS Case No. C-031981 regarding Police Officer Frank Menna

**Date:** December 15, 2025

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This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Police Officer Menna used force and spoke discourteously towards an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Menna will receive Training, as negotiated by CCRB.

  
Jessica S. Tisch  
Police Commissioner



ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
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November 24, 2025

The Honorable Jessica S. Tisch  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB v. Police Officer Frank Menna (Tax Reg #952006, DADS #2022-24640)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on October 14, 2025 and was endorsed by Assistant Deputy Commissioner Anne Stone on November 13, 2025.

On January 30, 2020 at 11.15am, at 8<sup>th</sup> Avenue and West 42<sup>nd</sup> Street in Manhattan, a civilian named [REDACTED] was riding his bike in the roadway. Officer Menna witnessed Mr. [REDACTED] going through a red light and stepped out into the street. The subsequent interaction between Mr. [REDACTED] and Officer Menna was captured on Officer Menna's BWC. The BWC showed that Officer Menna made contact with Mr. [REDACTED] and applied force onto Mr. [REDACTED], causing him to fall off his bicycle. This use of force was unnecessary.

Officer Menna's BWC also caught Officer Menna subsequently stating to Mr. [REDACTED] during the interaction, "Clean your shit and get out of the bike lane." This statement was discourteous and served no legitimate police function.

On November 13, 2025, in return for an acceptance by Officer Menna of the findings regarding the specifications pursuant to a Negotiated Settlement, the CCRB recommended a dismissal of the specifications with the further recommendation that Officer Menna receive Training. This is a downward departure for the discourtesy charge. This downward deviation is due to Officer Menna's thirteen years of service and lack of any prior disciplinary history.

Respectfully submitted,

*Brian Arthur*

Brian Arthur, Esq.  
Deputy Chief Prosecutor  
Civilian Complaint Review Board